

CONFIDENTIALITY AGREEMENT (NON-DISCLOSURE AGREEMENT — NDA)

Date: 09-10-25 Between

:

(A) [FULL LEGAL NAME OF AFRIMAT], a company incorporated under the laws of [country], RUT/ID [●], with registered office at [address], represented by [name and position] (hereinafter, the /“**Disclosing Party**” or “**AFRIMAT**”).

(B) Miner Global Connect SpA . / Miner Global Connect (MGC), a company incorporated under the laws of Chile, RUT 78.264.736-9, with registered office at Monjitas #513, office 11, Santiago, represented by **Robinson Sixto Godoy Cuchacovich** , in his capacity as CEO (hereinafter, the /“**Receiver**” or “**MGC**”).

Collectively, the “Parties”.

1. BACKGROUND AND PURPOSE

1.1. The Parties wish to hold discussions and negotiate a potential commercial and/or commercial representation relationship between AFRIMAT and MGC relating to the marketing of minerals, particularly anthracite, manganese, iron, and rare earths, the “**Purpose**.”

1.2. In the context of these discussions, the Disclosing Party may provide or permit access to confidential technical, commercial, and financial information. This Agreement governs the protection and use of such information.

2. DEFINITIONS

For the purposes of this Agreement, the following definitions shall apply:

2.1. “**Confidential Information**” : any information, whether oral, written, graphic, electronic or otherwise, provided by the Disclosing Party to the Recipient, including but not limited to: business plans, buyers lists, prices, model contracts (SCO, FCO, SPA), LOIs , technical data (assays , laboratory results), stock records, stockpile coordinates , geolocated photographs and videos, port data, legal documentation, financial information, know-how, models, software, correspondence, documents and any other data or material marked or identified as confidential or which by its nature should be considered confidential.

2.2. “**Authorized Representatives**” : any employee, director, professional advisor, bank, laboratory, logistics agent, auditor or external consultant of the Recipient who needs to know the Confidential Information for the Purpose and who are bound by confidentiality under terms no less restrictive than those set forth herein.

2.3. “**Technical Package**” : set of technical and commercial documents that the Disclosing Party considers necessary for commercialization and that are described in Annex A.

3. OBLIGATIONS OF THE RECEIVER

3.1. Receive the Confidential Information solely for the Purpose.

3.2. Maintain the Confidential Information in strict confidence and not disclose it to any third party except to Authorized Representatives and only to the extent necessary for the Purpose. 3.3. Adopt reasonable security measures at least equivalent to those the Recipient applies to its own confidential information, including access controls, passwords, and download logs.

 godoycuchacovich@gmail.com |  www.minerglobalconect.org |  [+56 9 6371 6129](tel:+56963716129) |

3.4. Not use the Confidential Information to obtain a competitive advantage other than for the Purpose, or to conduct transactions or negotiations with contacts or buyers provided by the Disclosing Party , without its prior express written consent (see non- circumvention clause).

3.5. Require each Authorized Representative in writing to sign or be bound by equivalent confidentiality obligations; the Recipient shall be liable for any breach by its Authorized Representatives.

3.6. Immediately notify the Disclosing Party in writing of any unauthorized use or loss of Confidential Information and cooperate in mitigation measures.

4. EXCEPTIONS (NON-CONFIDENTIALITY)

4.1. Information shall not be considered Confidential Information if:

- a) It is or becomes public knowledge through no fault of the Recipient; b) It was lawfully in the Recipient's possession prior to receipt and under no obligation of confidentiality; c) It was lawfully obtained by the Recipient from a third party who is not under an obligation of confidentiality to the Discloser ;
- d) It was independently developed by the Recipient without reference to the Discloser 's Confidential Information ;
- e) It must be disclosed by law, regulation, or court order, provided that the Recipient promptly notifies the Discloser and cooperates in reasonable efforts to limit disclosure and seek protective measures (e.g., a court order of confidentiality).

5. NON-CIRCUMVENTION AND NON-SOLICITATION

5.1. The Recipient agrees not to contact, negotiate or close direct transactions with any buyers, customers, suppliers, agents or contacts introduced by the Discloser during the term of this Agreement and for an additional period of **[5 years]** following its termination, without the written authorization of the Discloser .

5.2. The Recipient further agrees not to solicit or solicit any direct employees or consultants of the Discloser for a period of **[12 months]** following the termination of the relationship, except with prior written authorization.

6. DURATION

6.1. The obligation of confidentiality shall apply from the date of signature and shall remain in force for a period of **[5 years]** from the receipt of the last Confidential Information, except as expressly provided in specific clauses.

6.2. The obligations of non- circumvention and non-solicitation indicated in clause 5 remain in force for the periods specified therein.

7. OWNERSHIP AND LICENSES

7.1. All Confidential Information shall remain the exclusive property of the Discloser . Nothing in this Agreement confers on the Recipient any license, right, or title to any patent, trademark, copyright, know-how, or any other intellectual property right of the Discloser , unless agreed to in writing.

8. RETURN AND DESTRUCTION OF INFORMATION

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8.1. Upon termination of the Purpose or at the Discloser 's written request , the Recipient shall return or destroy (at the Discloser 's option) all documents and media containing Confidential Information, including electronic copies.

8.2. If the Recipient destroys Confidential Information, it shall issue a signed certification attesting to this and detailing the manner of destruction. 8.3. The Recipient is permitted to retain a copy of the documents only to the extent required by law to retain them, provided they remain confidential.

9. PROTECTION MEASURES AND DIGITAL ACCESS

Disclosing Party may require that Confidential Information be uploaded to a secure repository (e.g., a restricted-access shared folder on Google Drive/Dropbox Business or a secure document-sharing platform).

9.2. The Recipient agrees to use two-factor authentication when required by the Disclosing Party and to maintain access and download logs upon request.

9.3. If a security breach is observed, the Recipient will immediately notify the Recipient and cooperate in the investigation.

10. LIABILITY AND INDEMNIFICATION

Disclosing Party harmless from any damages, losses, costs, or expenses (including reasonable attorneys' fees) arising from the accident or misuse of the Confidential Information by the Recipient or its Authorized Representatives. 10.2. The

Disclosing Party may seek injunctive relief without needing to prove prior monetary damages where there is a risk of irreparable disclosure.

11. LIMITATION OF LIABILITY

11.1. Except for intentional or willful breaches by the Recipient, neither party shall be liable for any indirect damages, lost profits, or lost opportunities arising from this Agreement.

11.2. Notwithstanding the foregoing, the provisions of Section 10 shall not be limited by this Section in the event of willful misconduct or intentional disclosure.

12. NOTICE OF NON-COMPLIANCE BY THIRD PARTIES

12.1. If the Recipient receives a purchase offer or contact from a third party that includes information that substantially matches the Confidential Information, it must immediately notify the Discloser .

13. GENERAL PROVISIONS

13.1. **Governing Law and Dispute Resolution:** This Agreement shall be governed by the law of [insert country or "as agreed by the parties"]. Disputes shall be submitted to [ICC/LCIA arbitration / venue: London / City of choice], or to the jurisdiction of the courts of [city] if so agreed. (Complete according to preference).

13.2. **Notifications:** Notifications shall be made in writing to the addresses indicated in the header or to the emails:

- AFRIMAT: [email_afrimat@dominio.com]
- MGC: info@latitudnorteholding.lat / godoycuchacovich@gmail.com

13.3. **Assignment:** This Agreement may not be assigned without the prior written consent of the other party, except to a subsidiary or related company provided that the assignee accepts the obligations.

13.4. **Partial Invalidity:** If any provision is invalid or unenforceable, the remainder will remain in effect and the Parties will negotiate an alternative provision in good faith.

13.5. **Entirety:** This Agreement constitutes the entire agreement between the Parties with respect to confidentiality and supersedes any prior agreements.

13.6. **Amendments:** Amendments to this Agreement must be in writing and signed by both Parties.

14. ANNEXES AND DOCUMENTATION

14.1. **List of documents to be shared under NDA:** Technical Package: certifications, assays, certificates of origin, export permits, photographic/video evidence with geotags, stock list by Lot ID, port and train data, shipping history, bank details for payment, etc. (Attach specific list).

14.2. Any document marked by the Disclosing Party as "Confidential" will become an integral part of the Confidential Information.

15. SIGNATURES

As proof of compliance, the Parties sign this Agreement in two copies of the same content and with a single effect.

By AFRIMAT:

Name: _____ Position: _____

Signature:

Date: _____

By Miner Global Connect (MGC):

Name: **Robinson Godoy Cuchacovich**

Position: **CEO**

Signature: _____ Date: _____
